EMMANUEL NYAKUNIKA
and
DAVID MAFIKO
and
IKON RESOURCES (PRIVATE) LIMITED
versus
YUSUF AHMID
and
THE REGISTRAR OF DEEDS, COMPANIES & INTELLECTUAL PROPERTY

HIGH COURT OF ZIMBABWE
MUNGWARI J
HARARE: 20 July 2026

Special Plea

A Gumbo, for the plaintiffs
S Banda, for the 1st defendant

MUNGWARI J:

[1] The parties filed supplementary heads of argument pursuant to this Court's order of 1 June 2026. The First Defendant's argument is predicated on the proposition that the Plaintiffs' failure to file a replication constitutes an admission of the allegations contained in the Special Plea of Prescription and consequently eliminates any factual dispute requiring the leading of *viva voce* evidence.

The Defendant's reliance on the High Court Rules, 2021 (High Court Rules) is inconsistent and misplaced

[2] The Defendant has fundamentally shifted the legal basis upon which he relies. Initially, he raised a special plea of prescription relying on Rule 12 of the High Court (Commercial Division) Rules S1 123/20 (Commercial Court Rules). Upon being asked to file supplementary heads of argument with regards to whether or not failure to file a replication amounts to an admission, the

defendant then sought reliance on Rule 42(9) of the High Court Rules, 2021, as read with Rule 4 of the Commercial Court Rules.

[3] This shift is significant. Rule 4 permits recourse to the High Court Rules only where the Commercial Court Rules are silent or there is a lacuna in the Rules. It does not authorise a party to ignore an express provision of the Commercial Court Rules in favour of the general High Court Rules. *In casu*, there is no lacuna. The Commercial Court Rules expressly regulate the filing of a replication under Rule 12A, which provides that the plaintiff, after receiving a special plea may file a reply called the plaintiff's replication.

[4] The Legislature deliberately chose the permissive word "may" rather than the mandatory word "shall". However, the Defendant's entire argument proceeds on the assumption that the Plaintiffs were legally obliged to file a replication. That choice cannot be ignored by importing a mandatory requirement from the High Court Rules. The use of "may" denotes discretion and not compulsion. The Court must give effect to the plain language of the Rule. It is not open to the Defendant, or the Court, to substitute "shall" for "may" or to impose procedural obligations which the Rules themselves do not create.

[5] The effect of Rule 12A is therefore that;

(i) a plaintiff is permitted, but not obliged, to file a replication;

(ii) where no replication is filed, that omission does not amount to procedural default;

(iii) the plaintiff remains entitled to oppose the special plea on the existing pleadings and through legal argument.

The Defendant's submission that the Plaintiffs were obliged to replicate is therefore contrary to the express wording of the governing Rule.

[6] Resultantly, where the Commercial Court Rules expressly regulate a procedural step, Rule 4 cannot be invoked to override or contradict that provision. Henceforth, the Defendant's reliance on Rule 42(9) is therefore legally unsustainable because it seeks to create a mandatory procedural obligation where the Commercial Court Rules expressly provide otherwise.

Failure to file a replication does not constitute an admission

[7] Even if the Plaintiffs elected not to file a replication, that omission cannot amount to an admission that every allegation in the Special Plea is correct. The Defendant equates the absence of a replication with an admission that the cause of action accrued on 8 May 2017. That proposition is what is disputed by the plaintiff and is therefore debatable. A cause of action accrues not only as a factual allegation; it is a legal conclusion drawn from the underlying facts. While the parties may agree that the contract stipulated a date for performance, they do not agree that every cause of action arose on that date.

[8] The Plaintiffs have maintained that their claims include: the unlawful assumption of directorship; the unlawful assumption of shareholding rights; reliance upon irregular company documents; institution of proceedings in the Third Plaintiff's name; unlawful control of company property; exclusion of the Plaintiffs from company premises; and continued representation as director and shareholder. According to the plaintiffs, these allegations concern conduct extending well beyond May 2017. The Defendant's assertion that every cause of action accrued on one contractual date is therefore itself disputed. Failure to replicate cannot convert a disputed legal conclusion into an admitted fact.

***Nan Brooker* v *Mudhanda & Anor* SC 5/18 is distinguishable**

[9] The Defendant's reliance upon *Nan Brooker (supra)* is misplaced for two distinct reasons.

> i. The case was decided before the Commercial Court Rules existed. The Supreme Court delivered Nan Brooker in 2018. The Commercial Court Rules only came into operation in 2020, while Rule 12A was inserted in 2022. Accordingly, the Supreme Court was interpreting the procedural requirements contained in the ordinary High Court Rules, which required a replication. The legal landscape has since changed. The Commercial Court Rules now contain their own procedure governing replications, and that procedure deliberately adopts permissive language. The mandatory procedural approach discussed in Nan Brooker therefore cannot simply be transplanted into proceedings governed by Rule 12A.

ii. Nan Brooker concerned new facts requiring a replication. More importantly, Nan Brooker involved a plaintiff attempting to resist prescription through matters which had not been pleaded. The Supreme Court held that such new facts had to be introduced by replication because they constituted an avoidance of the special plea. That is not the present case. The Plaintiffs are not relying on new facts outside their Declaration. Their case has always been that the pleaded causes of action accrued at different times and involve continuing unlawful conduct extending beyond 2017. Everything necessary to determine that issue already appears in the pleadings.

The Court must first determine the true cause of action

[10] The Defendant assumes that the only relevant cause of action is breach of the 2017 agreement. Before prescription can be determined, the Court must first identify the true cause of action. A cause of action consists of the complete set of facts necessary to sustain a claim. Prescription cannot be determined until the Court identifies precisely what causes of action have been pleaded. The Plaintiffs' claims extend beyond contractual performance. They include allegations relating to; unlawful corporate control, unlawful assumption of shareholder rights, continuing occupation of company property, exclusion of the Plaintiffs and continued misrepresentation of authority. Whether those causes of action accrued in 2017, later, or constitute continuing wrongs is itself a matter requiring determination.

The Defendant improperly equates contractual performance with accrual of the cause of action

[11] The Defendant repeatedly submits that because performance was due on 8 May 2017, prescription necessarily commenced on that date. The law is clear that Prescription begins only when the creditor possesses a complete cause of action. The contractual performance date may be relevant evidence, but it is not automatically the date upon which every cause of action accrues. The existence of later breaches, continuing conduct, or separate wrongful acts may postpone or create different dates of accrual. That is precisely the dispute between the parties.

The Defendant bears the burden of proving prescription

[12] Prescription is an affirmative defence. The burden rests entirely upon the Defendant to establish; the true nature of every cause of action; when each cause of action accrued; and that the applicable prescription period expired before proceedings were instituted. The Defendant has not discharged that burden. Instead, he assumes that every claim accrued on 8 May 2017 without proving that proposition. Since the Plaintiffs dispute that factual and legal premise, the Defendant cannot rely upon an alleged procedural omission to satisfy the burden resting upon him.

***Viva voce* evidence remains necessary**

[13] The Defendant accepts that special pleas of prescription ordinarily require evidence but contends that no evidence is necessary because the facts are common cause. The Plaintiffs disagree. These disputes cannot be resolved merely by reading the agreement. They require evidence. Indeed, Nan Brooker itself recognises that special pleas generally involve facts outside the declaration requiring proof. The absence of a replication under a procedural regime where replication is discretionary cannot eliminate genuine factual disputes disclosed by the pleadings. To this end, *viva voce* evidence remains necessary before the Court can determine whether prescription has been established.

Conclusion

[14] The Defendant's argument is fundamentally flawed. It seeks to circumvent the express wording of Rule 12A by importing mandatory provisions from the High Court Rules despite the absence of any lacuna in the Commercial Court Rules. It further relies on Nan Brooker (*supra)*, a decision decided under a different procedural framework before the Commercial Court Rules came into force and on materially different facts. Properly interpreted, Rule 12A gives the Plaintiffs a discretion, not an obligation, to file a replication. Their decision to proceed by opposing the special plea through the pleadings and Heads of Argument therefore does not amount to an admission of prescription or eliminate the factual disputes disclosed by the Declaration. Since the Defendant bears the onus of proving prescription and the parties remain in dispute as to the true causes of action and the dates on which they accrued, the special plea

cannot be determined on the papers alone. The matter should proceed to the hearing of *viva voce* evidence so that those issues may be properly determined on their merits.

[15] Accordingly, **IT IS ORDERED THAT:**

1. The special plea filed by the defendant shall be disposed of by way of evidence as there are disputes of fact.

2. No order as to costs.

MUNGWARI J:……

Gumbo-Venge Law Chambers, plaintiffs' legal practitioners
Kufaruwenga, Kajevu & Zihanzu Legal Practitioners, defendant's legal practitioners